

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
DANIELLA VALERIUS

Plaintiff,

-against-

THE CITY OF NEW YORK and
DETECTIVE JONATHAN S. BOURNE

Defendant.
-----X

Index No. _____

Date Summons Filed: _____

Plaintiff designates **NEW YORK**
County as the place of trial.

The basis of venue is:
Defendants' Place of Business
& Place of Occurrence

SUMMONS

Plaintiffs resides at:
93 Country Club Lane
Pomona, New York 10970

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your verified answer on Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the State of New York, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: May 6, 2024
New York, New York



The De Leon Firm, PLLC
By: Edgar De Leon, Esq.
Attorney(s) for Plaintiff
26 Broadway - Suite 1700
New York, New York 10004
Telephone: (212) 747-0200
Facsimile: (212) 747-0202
Email: edl@thedeleonfirmpllc.com

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
DANIELLA VALERIUS

Plaintiffs,

-against-

Index No.: _____

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

*THE CITY OF NEW YORK and
DETECTIVE JONATHAN S. BOURNE*

Defendant.

-----X

Plaintiff, an individual residing in Pomona, New York, by her attorney(s), THE DE LEON FIRM, PLLC, complaining of the defendants, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF:

1. That at all times hereinafter mentioned, and at the time of occurrence, hereinafter more particularly set forth, defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing under and pursuant to the Laws of the State of New York, under its corporate name, style and title of THE CITY OF NEW YORK ("NYC").

2. That at all times hereinafter mentioned, and at the time of occurrence, hereinafter more particularly set forth, defendant, THE NEW YORK CITY POLICE DEPARTMENT ("NYPD"), was and still is a body and subdivision of the defendant NYC.

3. That at all times hereinafter mentioned, and at the time of occurrence, hereinafter more particularly set forth, defendant, THE NEW YORK CITY POLICE DEPARTMENT ("NYPD"), employed Police Officer "John Doe", later identified as

Detective 3rd Grade Jonathan S. Bourne, Shield No. 2430, and that upon information and belief, Detective Bourne remains an employee of the Defendant municipality.

4. That prior to the commencement of this action and within ninety (90) days of the happening of the occurrence as hereafter more particularly set forth, plaintiff duly served upon defendant, NYC, a Notice of Claim and that thirty (30) days have elapsed or expired and said claim has not been adjusted or paid; that this action is brought within one year of the happening of said accident.

5. That plaintiff has been examined by defendant, NYC, its agents, servants and/or employees, pursuant to notice, on February 26, 2024 and said plaintiff has otherwise complied with the requirements of Section 50-H of the General Municipal Law. Plaintiff's claim has not been adjusted or paid and this action is brought within one year and ninety days of the happening of said accident.

6. That prior to the commencement of this action and within ninety (90) days of the happening of the occurrence as hereafter more particularly set forth, plaintiff duly served upon defendants, NYC and NYPD, a Notice of Claim and that thirty (30) days have elapsed or expired and said claim has not been adjusted or paid; that this action is brought within one year and ninety days of the happening of said accident.

7. That upon information and belief, at all times hereinafter mentioned, defendant's employee, Detective Jonathan S. Bourne, was employed by defendant, NYC, and its subsidiary, NYPD.

8. That on September 10, 2023 at approximately 12:25 a.m. while Daniella Valerius (hereafter referred to as "VALERIUS") was lawfully outside of the "Sweet Chick" restaurant, located at 178 Ludlow Street, New York, New York.

9. That without provocation, probable cause or any other legal justification. VALERIUS was, accosted and assaulted by Police Officer "John Doe" (later identified as Detective Jonathan S. Bourne, hereafter referred to as "BOURNE"), assaulted VALERIUS by punching her in the mouth and causing her to suffer a physical injury.

10. That VALERIUS, was present along with others taking photographs of the artist "Cuvo" (phonetic spelling), when BOURNE punched her in the mouth.

11. That when asked by VALERIUS and others at the scene, BOURNE refused to give his name or badge number and threatened to arrest VALERIUS if she persisted in recording him and asking for his name and badge number.

12. That the incident was captured on numerous videos posted on social media, as well as by VALERIUS herself.

13. That as the result of having been assaulted by BOURNE, VALERIUS suffered a split lip, loosened teeth and pain accompanied by headaches. She has been traumatized by the assault and has been treated at a hospital, seen a dentist and is seeing a therapist.

14. That VALERIUS has sustained psychological trauma and loss of enjoyment of life and has and will incur hospital and medical expenses in an effort to alleviate the injuries sustained all to her damage in such sums as a jury finds reasonable, fair and just

15. That VALERIUS reported the incident to the Civilian Complaint Review Board ("CCRB") and has been interviewed by the same. She also reported the incident to the NYPD Internal Affairs Bureau and the New York County District Attorney's office and was interviewed by the same.

16. That the New York County District Attorney's Office has declined to prosecute BOURNE.

17. That the City of New York was negligent in failing to recognize that BOURNE had a violent nature and had the propensity towards violence and/or erratic behavior; in failing to perform sufficient and adequate tests and/or adequate psychological profile of him to determine his dangerous propensity towards violence.

18. That in failing to avoid and/or prevent the occurrence herein and in failing to supervise, properly supervise and adequately supervise BOURNE, failing to provide sufficient and adequate training to him in violation of the applicable laws, rules, statutes, ordinances and regulations in such cases made and provided.

19. That the said malicious acts were performed by defendant NYPD, Detective Jonathan S. Bourne, with the knowledge, consent, approval, encouragement and ratification of the defendant, NYC, and/or defendant NYPD and their respective agents, servants and/or employees.

20. That solely by reason of the aforesaid assault committed by the said defendants, and each of them, their respective agents, servants and/or employees, upon the plaintiff, said plaintiff sustained serious and injuries to her body, suffered shock to her nervous systems, and physical injuries, physical pain and mental anguish as a result thereof so that she was rendered sick, sore, lame and disabled, caused to suffer, did suffer, and, upon information and belief, will continue to suffer bodily and mental pain.

21. That by reason of the premises aforesaid, VALERIUS was caused to expend sums of money for legal fees, medical aid and attention, including

hospitalization, and to incur obligations for the same. Upon information and belief, plaintiff will in the future be caused to expend further sums of money.

22. That by reason of the premises aforesaid plaintiff was incapacitated from attending to her usual occupation and employment and lost the income and/or remuneration therefrom.

23. Upon information and belief, the plaintiff will continue to be so incapacitated from her usual occupation and employment for a long period of time and will lose her income and/or remuneration therefrom.

24. That by reason of the premises aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION FOR EXEMPLARY AND/OR
PUNITIVE DAMAGES ON BEHALF OF PLAINTIFF:**

25. That the plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "24" inclusive, with the same force and effect as if here again at length set forth.

26. That on September 10, 2023, the aforesaid defendants and/or each of them, their respective agents, servants and/or employees, without any just cause or provocation, abused process and willfully assaulted the plaintiff, threatened to arrest, imprison, maliciously prosecute and intentionally inflicted further emotional distress upon the plaintiff and by said acts defamed the plaintiff.

27. That by reason of the premises aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT AND BATTERY OF

PLAINTIFF:

28. That the plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "27" inclusive, with the same force and effect as if here again at length set forth.

29. That the defendants, and each of them, their respective -agents, servants and/or employees, without just cause or provocation, maliciously assaulted, battered, beat, struck and ill-treated the plaintiff and violently threw and knocked said plaintiff about, and caused plaintiff to sustain personal injuries.

30. That by reason of the premises aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL INFLICTION OF

EMOTIONAL DISTRESS OF PLAINTIFF:

31. That the plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "30" inclusive, with the same force and effect as if here again at length set forth.

32. That as a result of the assault, assault and battery and defamation of the plaintiff by the defendants, and each of them, their respective agents, servants and/or

employees, plaintiff suffered and continues to suffer from emotional distress, which may be permanent or long lasting in nature.

33. That by reason of the premises aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

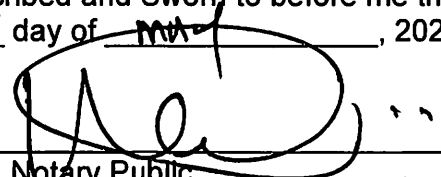
WHEREFORE, plaintiff demand judgment against the defendants, and each of them, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction on the First Cause of Action; plaintiff demands judgment against the defendants, and each of them, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, on the Second Cause of Action; plaintiff demands judgment against the defendants, and each of them, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, on the Third Cause of Action; plaintiff demands judgment against the defendants, and each of them, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction on the Fourth Cause of Action, together with the costs and disbursements of this action.

DATED: May 5, 2024
New York, New York


The De Leon Firm, PLLC
By: Edgar De Leon, Esq.
Attorney(s) for Plaintiff
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New York, New York 10004
Telephone: (212) 747-0200
Facsimile: (212) 747-0202
Email: edl@thedeleonfirmpllc.com

VERIFICATIONSTATE OF NEW YORK, COUNTY OF Rockland) ss.:

I, **DANIELLA VALERIUS**, am the Plaintiff in the within action. I have read the foregoing "Verified Complaint" and know the contents thereof. The contents are true to our own knowledge except as to matters therein stated to be alleged upon information and belief, and as to those matters we believe them to be true.


Daniella Valerius - PlaintiffSubscribed and Sworn to before me this
8th day of May, 2024

Notary Public
My Commission Expires on 05/11/2027

NEIL F. AGYIRI
Notary Public - State of New York
NO. 01AG6324731
Qualified in Rockland County
My Commission Expires May 11, 2027